part of the Congress programme for close to twenty years. Nationalization and a planned economy had been the driving force behind the creation of the first National Planning Committee in 1938, presided over by Nehru himself. And yet, by May 1951 almost all these schemes, the bedrock of Nehru's social and economic policy, had been struck down by the judiciary as being violative of constitutional bounds. The feeling that the government was under judicial siege had grown. To top it all, he was facing withering criticism in the press. The First Amendment was Nehru's way of striking back by constraining the fundamental rights that had proved to be a roadblock for his plans for social transformation.

The amendment circumscribed the right to freedom of speech, the right to property and the right to freedom from discrimination. Given that these far-reaching constitutional changes were sought to be enacted by an indirectly elected provisional parliament, it was only to be expected that the amendment became the subject of some of independent India's fiercest parliamentary debates, in which stalwarts like Acharya Kripalani, B.R. Ambedkar, C. Rajagopalachari, H.V. Kamath, H.N. Kunzru and Frank Anthony crossed swords. But even among the sharp wit and incisive repartee of these luminaries, the verbal duel between Jawaharlal Nehru and the unofficial Leader of the Opposition Syama Prasad Mookerjee – described by Nehru's biographer Walter Crocker as the most effective speaker in Parliament[3] – over the substance and the timing of the amendment unquestionably ranks as one of the finest oratorical battles in Indian parliamentary history.[4]

Reporting on the debate the following day the *Times of India* approvingly noted: 'Mr Nehru's sentiment was more than outmatched by the impassioned logic of Dr Mookerjee.'[5] So rousing was Mookerjee's oratory that the Congress leader N.G. Ranga, who was next to speak, described it as 'one of the most powerful and eloquent speeches' he had ever heard, and called Mookerjee the 'the Indian Burke' after the great Anglo-Irish parliamentarian and conservative philosopher. 'I began to think,' Ranga rhapsodized, 'how the British Parliament must have reacted to that other